

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK**

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AKINKUNMI ROSIJI,

C.V. No. 15-CV-728 (MKB)(LB)

Plaintiff,

**AMENDED
COMPLAINT**

-against-

P.O. KEVIN FULHAM; P.O. SEAN KEEGAN;
CITY OF NEW YORK,

(Jury Trial Demanded
of all issues)

Defendants.
-----X

The Plaintiff AKINKUNMI ROSIJI, by his attorney GARNETT H. SULLIVAN, ESQ.,
complaining of the defendant's alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiff seeking relief for the defendant's violation and deprivation, under color of State law of plaintiff's rights secured by the Fourth and Fourteenth amendments of the New York and United States constitutions and under common law, and is being brought pursuant to 42 U.S.C. sec. 1983.

2. Plaintiff seeks damages, both compensatory and punitive, affirmative and equitable relief, an award of costs, interest and attorney's fees, and such other and further relief as this Court deems just and equitable.

JURISDICTION

3. Jurisdiction is based upon and conferred to this Court by 42 U.S.C. 1983 and 28 U.S.C. secs. 1331 and 1343(3) and (4). Plaintiff further invokes this Court's pendent jurisdiction, pursuant to 28 U.S.C. 1367 (a) with respect to any and all State law claims and as against all parties that are so related to the claims in this action within the original jurisdiction of this Court that they form part of the same case or controversy.

PARTIES

4. That plaintiff AKINKUNMI ROSIJI at all times hereinafter mentioned was and still is a citizen of the United States and a resident of the City and State of New York and County of Queens.

5. That the defendant CITY OF NEW YORK is a municipal organization organized and existing by virtue of the laws of the State of New York.
6. That upon information and belief the defendants P.O. KEVIN FULHAM and P.O. SEAN KEEGAN at all times hereinafter mentioned were police officers employed by the defendant CITY OF NEW YORK and were acting with the scope of said employment as police officers and were further acting under the direction, supervision and control of defendant CITY OF NEW YORK.
7. The defendants P.O. KEVIN FULHAM and P.O. SEAN KEEGAN, whose true name and identify is unknown to plaintiff at this time, are being sued individually and in their official capacity as police officers acting on behalf of the defendant CITY OF NEW YORK.

FACTUAL ALLEGATIONS

8. That on or about June 28, 2014 at approximately 2:00 P.M. the plaintiff was legally operating a dodge charger motor vehicle in the vicinity of Farmers Blvd. in the County of Queens, City and State of New York.
9. That the plaintiff drove his vehicle into the driveway of a friend's home located at 109-02 110th Road, Queens County, New York, and then entered said home.
10. That after he entered the home the defendants P.O. KEVIN FULHAM and P.O. SEAN KEEGAN, forced their way into the home of plaintiff's friend without any permission or authority.
11. The defendants then accosted plaintiff inside the aforementioned premises kicked him multiple times and otherwise forcefully and brutally physically abused him.
12. The plaintiff was handcuffed and arrested by defendants who then conducted a search of the premises claiming to be looking for a gun. Said search was done without the consent of the owner of the premises who was present.
13. Plaintiff was taken into police custody and held against his will.
14. The defendant P.O. KEVIN FULHAM falsely charged plaintiff with the crimes of unauthorized use of a motor vehicle, assault second degree, obstructing governmental administration and resisting arrest.

15. That at the time said criminal charges were made, the defendant P.O. KEVIN FULHAM knew that said charges were false, had no basis in fact or truth.

16. As a result of the false criminal charges made against plaintiff by defendant FULHAM, the plaintiff was caused to be held in custody for over twenty four hours until he was released from custody by a Judge of the Criminal Court of the City of New York, County of Queens on June 29, 2014 at about 3:30 P.M.

17. That on or about December 18, 2014 the criminal charges made against plaintiff were adjourned in contemplation of dismissal pursuant to New York Criminal Procedure Law sec. 170.55.

18. As a result of the conduct of the defendants the plaintiff was caused to suffer physical injury, including back pain, and was caused to incur expenses including legal fees.

19. The charges were brought against plaintiff by the defendants despite the absence of any facts supporting them and the absence of probable cause to believe that plaintiff had committed any of the crimes charged.

20. That the defendants had absolutely no right or reason to use physical force against plaintiff.

21. The plaintiff who is a college student had never been arrested before and has been very traumatized by this horrible experience.

22. The defendants behaved callously in their disregard of the plaintiff's rights

FIRST CAUSE OF ACTION

23. That Plaintiff incorporates by reference each preceding paragraph of this complaint as if set forth at length herein.

24. That the aforesaid arrest and imprisonment of the plaintiff by defendants in their capacity as police officers employed by defendant CITY OF NEW YORK acting under the color of State Law, without any authority of the law and without any reasonable cause or belief that the defendant was in fact guilty of the crimes for which he was charged.

25. That said defendants, their agents, servants and employees falsely arrested and illegally imprisoned the plaintiff and intentionally subjected plaintiff to confinement which plaintiff was conscious of and said confinement was not otherwise privileged or consented to by plaintiff.

26. That by reason of the aforesaid false arrest and imprisonment cause willfully and maliciously by the defendants, their agents, servants or employees, the plaintiff was wrongfully deprived by the defendants, their agents, servants or employees, the plaintiff was wrongfully deprived of his rights privileges and benefits as provided to him under the constitutions of the United State of America and the State of New York, was subjected to pain, suffering, great indignities, ridicule, scorn, loss of freedom, humiliation, mental distress, was prevented from attending his usual activities was injured in his reputation in the community was further cause to incur monetary expenses.

27. That the defendants committed the foregoing acts willfully and with malicious disregard for plaintiff's rights and is therefore liable to plaintiff for compensatory as well as punitive damages.

SECOND CAUSE OF ACTION

28. The plaintiff incorporates by reference each preceding paragraphs of this complaint as though fully set forth at length herein.

29. The defendants acting under color of State law, subjected plaintiff to the foregoing acts without due process of law in violation of 42 U.S.C. sec. 1983 thereby depriving plaintiff of his rights, privileges and immunities secured by the First, Fourth, Fifth, Ninth and Fourteenth Amendments to the United State Constitution, including, without limitations, deprivation of the following constitutional rights:

(a) Plaintiff was deprived of Forth Amendment constitutional right to be free from unreasonable searches and seizures of his person;

(b) Plaintiff was deprived of his Fourteenth Amendment right to liberty without due process of law;

(c) Plaintiff was deprived of his Fourteenth Amendment right to equal protection of the laws.

THIRD CAUSE OF ACTION

30. The plaintiff incorporates by reference each preceding paragraphs of this complaint as though fully set forth at length herein.

31. Defendants subjected plaintiff to the foregoing acts without due process of law, thereby depriving plaintiff of rights, privileges and immunities secured by Article 1 sec. 1,6,8,9,11 and 12 of the New York State Constitution, including without limitation the following deprivations of his rights, privileges and immunities;

(a) Plaintiff was deprived of his right to be free from unreasonable seizure of his person, in violation of sec. 12 of the constitution of New York;

(b) Plaintiff was deprived of his rights to liberty, without due process of law, in violation of sec. 6 of the constitution of the State of New York;

(c) Plaintiff was deprived of his right to equal protection of the laws, in violation of sec. 11 of the constitution the State of New York.

FOURTH CAUSE OF ACTION

32. The plaintiff incorporates by reference each preceding paragraphs of this complaint with the same force and effect as if set forth herein.

33. That the defendants P.O. FULHAM and P.O. SEAN KEEGAN subjected the plaintiff to unnecessary and excessive use of physical force by kicking, striking and otherwise physically abusing him.

34. The conduct of the defendants complained of herein constitutes excessive use of force in violation of rights guaranteed by the United States Constitution and 42 U.S.C. section 1983.

SEVENTH CAUSE OF ACTION

35. The plaintiff incorporates by reference each preceding paragraphs of this complaint as though fully set forth at length herein.

36. That at all times material to this complaint, the defendant CITY OF NEW YORK; acting through its police department had in effect de facto policies, practices, customs, and usages that were a direct and proximate cause of the unconstitutional conduct of the defendant police officers.

37. That it is common practice and common knowledge that police officers of the City of New York routinely arrest individuals and maliciously charge them with the criminal violations of which

plaintiff was charged, in the absence of probable cause to believe the persons committed any such violation of laws.

38. That defendant CITY OF NEW YORK is well aware of the foregoing facts and has received innumerable complaints of false arrest for such charges, but the CITY OF NEW YORK has condoned such conduct, and has failed to take sufficiently reasonable actions to investigate and to institute policies to prevent or deter the police from charging innocent citizens of disorderly conduct, obstructing governmental administration and resisting arrest.

39. Defendants, by their aforementioned acts, negligently failed to use due care in the performance of their duties in that they, among other negligent acts:

- (a) Failed to perform their duties as a reasonably prudent and careful police officer would have done under similar circumstances, including
(but not limited to) conducting an improper and unlawful detention, seizure, and arrest; physically assaulting a person; and other acts which a police officer of ordinary prudence would have done;
- (b) Hired and retained incompetent and unfit police officers whom they knew, or should have known, possessed dangerous propensities and a lack of proper temperament and whom they knew, or should have known, harbored hostility toward persons who questioned or criticized police conduct, or asserted their legal rights;
- (c) Failed to exercise care in instructing police officers, officials, supervisors, and civilian employees as to their deportment, behavior, and conduct, including (but not limited to) failing to give proper instructions as to when citizens may be forcibly detained and taken into custody, as to the preparation and submission of accurate criminal charges, as to consequences of inflicting summary punishment and bringing false criminal charges; and as to the obligation of police officers to intervene to protect citizens threatened with violence or deprived of constitutional rights by other New York City police officers;
- (d) Failed to establish meaningful procedures for disciplining officers and other personnel who have engaged in such acts of misconduct

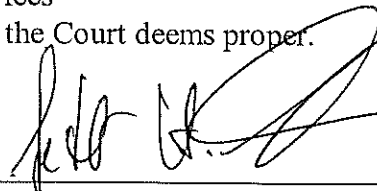
40. Upon information and belief the defendant CITY OF NEW YORK has been sued thousands of times for false arrests based on Citizens being falsely accused of the exact same charges with which plaintiff was charged.

41. That the defendant CITY OF NEW YORK has historically failed to take any disciplinary action against police officers who have been found liable for false arrests. In failing to take disciplinary action of any sort against such officers the CITY OF NEW YORK has in essence condoned and ratified these unconstitutional practices by its police officers; and has caused to believe they can concoct false charges and arrest citizens without consequences to them.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- A. Compensatory damages
- B. Punitive damages
- C. Costs, interests, and attorney's fees
- D. Such other and further relief as the Court deems proper.

Dated: South Hempstead, New York
August 10, 2015



GARNETT H. SULLIVAN, ESQ.
Attorney for Plaintiff
1080 Grand Avenue
South Hempstead, NY 11550
(516) 285-1575

for the

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Signature of Clerk or Deputy Clerk

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PROOF OF SERVICE*(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))*

This summons for *(name of individual and title, if any)* _____
 was received by me on *(date)* _____.

☐ I personally served the summons on the individual at *(place)* _____
 _____ on *(date)* _____; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
 _____, a person of suitable age and discretion who resides there,
 on *(date)* _____, and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____, who is
 designated by law to accept service of process on behalf of *(name of organization)* _____
 _____ on *(date)* _____; or

☐ I returned the summons unexecuted because _____; or

☐ Other *(specify)*:

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc: